

HOUSE No. 5521

The Commonwealth of Massachusetts

PRESENTED BY:

Carmine Lawrence Gentile and James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for recall elections in the town of Sudbury.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>6/11/2026</i>

HOUSE No. 5521

By Representative Gentile of Sudbury and Senator Eldridge, a joint petition (accompanied by bill, House, No. 5521) of Carmine Lawrence Gentile (by vote of the town) for legislation to provide for recall elections in the town of Sudbury. Election Laws. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for recall elections in the town of Sudbury.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding the provisions of any general or special law to the
2 contrary, any holder of an office in the town of Sudbury elected solely by the voters of town may
3 be recalled from that office as provided in this act. However, an initial recall affidavit shall not
4 be filed against an official within 3 months after the official takes office or within the last 6
5 months of the official's term.

6 (b) An initial recall affidavit signed by at least 250 voters may be filed with the Town
7 Clerk. The initial recall affidavit shall contain the name of the official whose recall is sought and
8 a statement of the grounds for recall. If the affidavit is found to contain a sufficient number of
9 verified signatures the Town Clerk shall deliver to the first 20 signers of the affidavit formal
10 numbered and printed recall petition sheets bearing the Town Clerk's official seal. The petition
11 sheets shall be addressed to the Select Board and demand the recall. The Town Clerk shall
12 ensure that each petition sheet contains the name of the elected official subject to recall, the

names of the first 10 signers of the affidavit, and the grounds for recall as stated in the affidavit. The petition sheets shall be returned to the Town Clerk within 28 days following the date they are issued, signed by at least 10 percent of the total number of persons registered to vote as of the date of the most recent regular town election. The Town Clerk shall within 4 working days submit the petitions to the Board of Registrars which shall within 7 working days certify the number of signatures that are names of registered voters of the town.

(c) If the recall petition sheets are signed by a sufficient number of registered voters, as certified by the Registrars of Voters, the Town Clerk shall submit the petition and its certification to the Select Board without delay. The Select Board shall within 5 working days, give notice, in writing, of the receipt of the petition to the officer whose recall is sought. If the officer does not resign from the office within 5 working days of the date notice is given by the Select Board, then the Select Board shall promptly order an election to be held not less than 65 nor more than 100 days after the date the Town Clerk certified the petition.

(d) The nomination of candidates, the publication of the warrant for the recall election and the conduct of the recall election shall be in accordance with the laws regulating elections unless otherwise provided in this act.

(e) Ballots used at the recall election shall state the proposition in the order indicated:

For the recall of (name of officer) from the office of _____

Against the recall of (name of officer) from the office of _____

Adjacent to each proposition shall be a place to mark a vote. Following the propositions shall appear the word "Candidates" with directions to voters as required by law. Beneath the

word “Candidates” shall appear the names of the candidates arranged as determined by a drawing by lot conducted by the Town Clerk which shall be open to the public. If a majority of the votes cast upon the question of recall is against the recall, the votes for candidates shall be of no legal effect. If a majority of the votes cast is in favor of the recall, the votes for candidates shall be counted and the candidate(s) receiving the highest number of votes shall be declared elected.

(f) The incumbent shall continue to hold office and to perform its duties until the recall election. If recalled, and not re-elected in the recall election, the officer shall be deemed removed from the office immediately. Under such circumstance, the candidate who receives the highest number of votes shall be elected and serve for the balance of the unexpired term.

(g) A person who has been recalled from an office or who has resigned from office while a recall petition was pending against them shall not be appointed to any town office within 2 years after the recall or resignation.

SECTION 2. This act shall take effect upon its passage.